

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----
PEDRO HERNANDEZ,

Plaintiff (s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MOHAMMED AHMED
BADGE #5583, POLICE OFFICERS JOHN DOE I THROUGH
V, (Persons whose identities are in the sole possession of
THE NEW YORK CITY POLICE DEPARTMENT),
individually and their official capacities,Defendant (s),

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and serve a copy you answer, or, if the complaint is not served with this summons, to serve a notice appearance, on the Plaintiff's Attorney (s) within 20 days after the service of complete if this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demand int the complaint.

Dated: November 24, 2015


HARMON, LINDER & ROGOWSKY, ESQS.Attorney (s) for Plaintiff (s)
Post Office Address:
3 Park Avenue, Suite 2300
New York, NY 10016The City of New York
100 Church Street
New York, NY 10006The New York City Police Department
One Police Plaza
New York, NY 10033Police Officer Mohammed Ahmed Badge #5583
One Police Plaza
New York, NY 10033**Index No.****Plaintiff designates**

NEW YORK

County as the place of trial
The basis of the venue is**Plaintiff's Residence**

SUMMONS

Plaintiff resides at:78 Catherine Street
New York, NY 10038**County of NEW YORK**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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PEDRO HERNANDEZ

Plaintiffs,

-against-

VERIFIED
COMPLAINT
INDEX:

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MOHAMMED AHMED BADGE #5583, POLICE
OFFICERS JOHN DOE I THROUGH V, (Persons
whose identities are in the sole possession
of THE NEW YORK CITY POLICE DEPARTMENT),
individually and in their official
capacities.

Defendants.

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Plaintiff, complaining of the defendants herein by her
attorneys, HARMON LINDER & ROGOWSKY, respectfully sets forth
and alleges, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PEDRO HERNANDEZ

1. That at the time of the commencement of this action
plaintiff was a resident of the County, City and State of New
York.

2. Upon information and belief, that at all times herein
mentioned defendant, THE CITY OF NEW YORK, was and still is a
public benefit corporation organized and existing under and by
virtue of the laws of the State of New York.

3 That at all times herein mentioned, the plaintiff duly served a Notice of Claim and Intention to sue thereupon on the defendant, THE CITY OF NEW YORK, on August 28, 2015 within the time prescribed by law.

4. That defendant, THE CITY OF NEW YORK, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim and Intention to Sue.

5. That the plaintiff has duly complied with all statutes and laws applicable to the defendants precedent to the making of this claim and bringing this action.

6. Upon information and belief, that at all times herein mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a public benefit corporation or other municipal agency organized and existing under and by virtue of the laws of the State and/or City of New York.

7. That at all times herein mentioned, the plaintiff duly served a Notice of Claim and Intention to sue thereupon on

the defendant, THE NEW YORK CITY POLICE DEPARTMENT, on August 28, 2015 within the time prescribed by law.

8. That defendant, THE NEW YORK CITY POLICE DEPARTMENT, has neglected and refused to make an adjustment in payment thereof within more than thirty (30) days after service of said Notice of Claim and Intention to Sue.

9. That at all times herein mentioned, defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and POLICE OFFICERS JOHN DOES I through V (fictitious names for individuals whose identities are presently unknown by the plaintiff, hereinafter referred to as JOHN DOES I-V), were and still are peace officers and/or police officers and/or detectives, employed by defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, acting in their individual and official capacity.

10. That at all times herein mentioned, defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, were acting within the course and scope of their authority as Peace Officers/ Police Officers/ and/or detectives of the defendant, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

11. That at all times herein mentioned, defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, were acting within the course and scope of their authority and as Peace Officers/ Police Officers/ and/or detectives of the defendant, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT acting in his individual and official capacity.

12. That on the 21st Day of July 2015, at approximately 2:00 am, the plaintiff was a lawful subway passenger on the downtown rapid transit service commonly known as the "A" line, when the defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, by its servants, agents, or employees namely police officers for the defendants, POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, at the Fulton Street Subway Station located on and upon the lands and premises a Fulton Street and Nassau Street, in the County, and State of New York, without notice, justification and provocation, brutally, recklessly, wantonly, negligently, willfully, maliciously and with gross negligence and unreasonable force, physically assaulted, threatened, pushed, battered, verbally threatened, abused, mocked and humiliated the plaintiff and deprived him of his Constitutional, Civil and Human Rights. At the aforesaid time and place, plaintiff

was caused to be without notice, justification and provocation, brutally, violently, recklessly, wantonly, negligently, maliciously, and willfully assaulted and battered and seized and assaulted with unreasonable physical force without probable cause or just reason and forcefully handcuffed; struck repeatedly about the body and head and leg and kicked causing pain, suffering, permanent partial disability and injury by THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents, or employees namely police officers for the defendants, POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V.

13. That at all times herein mentioned, the defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, by its employees namely police officers, including defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, for the defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, without cause, justification, provocation and notice, brutally, and without provocation, recklessly, wantonly, negligently, maliciously, did arrest the plaintiff and caused him to be arrested and detained for a substantial period of time.

Plaintiff, PEDRO HERNANDEZ, was publicly handcuffed before other patrons and citizens who were present at the aforementioned area of New York County at the time of his

arrest. Plaintiff was initially denied medical attention despite objective indications that medical attention was warranted and requested by the plaintiff. Plaintiff continued to be humiliated, mocked, denied medical treatment, and disparaged throughout his arrest and detention.

The wrongful arrest, detention, prosecution, an assault herein and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants, their agents, servants, employees and/or licensees in negligently, carelessly, maliciously, wrongfully, recklessly and with gross negligence causing, allowing and/or permitting the Plaintiff to be physically detained, assaulted, battered, falsely arrested, maliciously prosecuted, and deprived of his civil rights; in the use of wantonness, recklessness and carelessness that accompanied the unbridled discretion in the false arrest, detention, malicious prosecution, and the application of physical, deadly and/or life threatening force; in failing to guard against the use of improper arrest and prosecution procedures and excessive physical force against members of the public, including plaintiff; in the careless, reckless and negligent use of arrest and prosecution procedures, and excessive force; in the wrongful, willful, malicious and negligent and grossly negligent use of excessive physical force such that Plaintiff was physically detained, assaulted, falsely arrested and deprived of his civil rights;

in failing to properly hire and supervise the selection of competent Police Offices.

14. The said plaintiff has been subjected to the deprivation by defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT and or its agents, employees and or servants, including defendants, POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, under the custom and usages in the County, City and State of New York, of rights, privileges and immunities secured to him by the Constitution of the State of New York and particularly, with respect to the said plaintiff's rights under Article I of the Bill of Rights to the said New York Constitution; to his rights to security of person and freedom from arrest, guaranteed by said Bill of Rights to the Constitution, to his right to be informed to the true nature and cause of accusation against him guaranteed by said Bill of Rights to the said Constitution as well as his right to Equal Protection guaranteed under said Bill of Rights to the Constitution, moreover the aforesaid violated rights are further provided for in the Civil Rights Law of the State of New York.

15. That as a direct consequence and result of the acts of the defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, by their servants, agents and or employees,

including defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V herein above complained of, the plaintiff was deprived of his liberty on July 21, 2015.

16. That as a result of the foregoing, the plaintiff seeks damages as provided in the Constitution of the State of New York, and the United States of America and the Bill of Rights of the United States of America and the State of New York as compensatory damages.

17. Because of the outrageous nature of defendants' conduct and the resulting stigmatization of the plaintiff as a criminal, punitive damages should be assessed against the defendants.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PEDRO HERNANDEZ

18. Plaintiff repeats and **realleges** each and every allegation contained in paragraphs 1 through 17 as if the same were more fully herein after set forth at length.

19. That the all defendants did intentionally, maliciously, wantonly and recklessly caused plaintiff to fear immediate harm from their actions and words and did, in fact inflict such harm upon him by striking him before, after and while he was sufficiently restrained and or handcuffed.

20. That the defendants' aggressive and offensive conduct was done deliberately to harm the plaintiff.

21. That as a result of the aforesaid conduct, plaintiff suffered injuries, including but limited to fractures, concussion syndrome, hematomas, lacerations, bruises, sprains and strains and other physical injuries causing pain and suffering.

22. That as a further result of defendants conduct, plaintiff suffered fright, shock, humiliation, outrage and other mental injuries.

23. That because the defendants conduct was malicious, aggressive, wanton, reckless and outrageous, punitive damages should be assessed against them.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

PEDRO HERNANDEZ

24. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 23 as if the same were more fully herein after set forth at length.

25. That the defendants conduct as earlier described was negligent, careless, willful, and or oppressive in inter alia:

- (a) Failing to take proper precautions for the safety and well being of the plaintiff;
- (b) That defendants THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT were negligent in the hiring, screening, training and supervising of its employees, including defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, and in having or contracting for provision of inadequate and or dangerous security personnel, in particular the police officers set forth in the complaint.
- (c) Failing to adopt appropriate procedures for the protection of suspects;
- (d) Allowing its personnel to use excessive force;
- (e) It is further claimed that Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, were further negligent, careless and reckless in their

acts and/or omissions in their failure to properly hire, train supervise, manage, control and discipline their employees.

- (f) Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, were further negligent reckless and careless in their use, upkeep, maintenance, and or management of a system of fretting out and keeping track of and methodology used for evaluations of police officers who have dangerous dispositions and vicious and violent propensities.
- (g) Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and its agents, servants and/or employees, including defendants POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V had reason to believe and or knew or in the exercise of reasonable care should have known that their agents servants and or employees including JOHN DOES I-V, were a danger to themselves and to others.
- (h) Defendants failed to properly update, maintain and amend its records regarding problem officers who the defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT had reason to believe or knew or in the exercise of reasonable care should

have known that their agents servants and/or employees were a danger to themselves and to others.

- (i) It is further claimed that the Defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless and/or reckless in that its plan and strategy for the deployment and allocation of its municipal resources lacked a rational basis, was plainly inadequate and was not properly reviewed in light of its actual operation.
- (j) Negligence at law

26. That the defendant, THE CITY OF NEW YORK and/ or the NEW YORK CITY POLICE DEPARTMENT, should have known that its failure in such regards would cause harm.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PEDRO HERNANDEZ

27. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 26, as if the same were fully herein after set forth at length.

28. That at all times hereinafter set forth and prior thereto, the defendant, THE CITY OF NEW YORK and/ or THE NEW YORK CITY POLICE DEPARTMENT, by its officials, agents, servants and/or employees, detainees, restrained and detained the plaintiff against his will and without any legal justifications.

29. That at all times hereinafter set forth and prior thereto, the defendants, POLICE OFFICER MOHAMMED AHMED BADGE #5583 and JOHN DOES I-V, restrained and detained the plaintiff against his will and without any legal justifications.

30. That at time of the aforesaid restraint and detention, defendants knew and or should have known that plaintiff had not committed any crime.

31. That as a direct result of the defendants wrongful detention, plaintiff suffered injuries including but not limited to fractures, lacerations, sprains, strains, loss of liberty, humiliation and mental distress and other mental and physical injuries.

32. That because of the outrageous nature of the defendant's seizure and detention of plaintiff, punitive damages should be assessed against them.

WHEREFORE, plaintiff, PEDRO HERNANDEZ, demands judgement against the defendants on Four Cause of Actions in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, all together with the costs and disbursements of this action.

Dated: November 18, 2015
New York, New York

A handwritten signature, likely of Mark J. Linder, consisting of a large, stylized 'O' or 'L' shape with a vertical line extending downwards from the center.

Mark J. Linder, Esq.
Harmon, Linder and Rogowsky
42 Broadway
New York, NY 10004
(212) 732-3665
MJL/mjj

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

I, the undersigned, am an attorney admitted you practice in the Courts of New York State, and say that:

I am the attorney of record or of counsel with the attorney (s) of record for plaintiff.

I have read annexed **VERIFIED SUMMONS AND COMPLAINT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief. My belief, as to those matters therein not stated upon knowledge is based upon the following:

Interviews and/or discussions with the plaintiff (s) and papers and /or documents in the file.

The reasons I make this affirmation instead of the plaintiff is because said plaintiff resides outside of the county from where your deponent maintains his office for the practice of law.

Dated: New York, NY
November 24, 2015

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Mark J. Linder

Index No.

Year

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY **NEW YORK**

PEDRO HERNANDEZ,

Plaintiff (s),

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
MOHAMMED AHMED BADGE #5583, POLICE OFFICERS JOHN DOE I THROUGH V, (Persons
whose identities are in the sole possession of THE NEW YORK CITY POLICE DEPARTMENT),
individually and in their official capacities,

Defendant (s),

VERIFIED SUMMONS AND COMPLAINT

HARMON, LINDER & ROGOWSKY, ESQS.
Attorney (s) for Plaintiff (s)
3 Park Avenue, Suite 2300
New York, NY 10016
(212)-732-3665 Fax (212)-732-1462

To:
Attorney (s) for

Service of a copy

of the within

Is hereby admitted,

Dated:

Attorney (s) for

PLEASE TAKE NOTICE

NOTICE OF ENTRY

that the within is a (certified) true copy of a
entered in the office of a the Clerk of the within named
Court on 20

NOTICE OF SETTLEMENT

that an order of which the within is a true copy will be
presented for settlement to the Hon. one of judges
Of the within name Court, on 20, at M.

Dated

HARMON, LINDER & ROGOWSKY, ESQS.
Attorney (s) for Plaintiff (s)
3 Park Avenue, Suite 2300
New York, NY 10016
(212)-732-3665 Fax (212)-732-1462